



6HOMES

CLIENT ORDER FORM

Part A – Your details ("Customer")

Full name or Company Details

ABN / ACN (if a Company)

Phone number

Email

Job Reference Number

Site Address (being the address at which the Product will be installed)

Street Address

Suburb

State

Post code

Country

Australia

Billing Address (If different from Site Address)

Street Address

Suburb

State

Post code

Country

Australia

Part B – Product details

The Product Specifications are set out in Schedule A of the Terms.

Product (please select type and quantity)

Product

Quantity

Product

Quantity

☐ The WILSON

☐ The NEWELL

☐ The NORFOLK

☐ The ELSEY

☐ The AVON

☐ The BELFORD

☐ The DAWSON

☐ The MIRANDA

☐ The CLAREMONT

☐ The DARLING

☐ The MURRAY

☐ The HUDSON

☐ The ALTON

☐ The CAREY

☐ The SELINA

☐ The OXLEY

☐ The LINCOLN

☐ Other

Colour Scheme Selection

☐ Light Scheme

☐ Neutral Scheme

☐ Dark Scheme

Additional Comments



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Part C – Price**Prices and Product Specifications**

"Prices shown are list prices and are subject to change without notice. Prices may also be changed without notice due to unforeseen cost increases of imported products, raw materials, or currency fluctuations. We carefully check pricing and product specifications, but occasionally errors can occur, therefore we reserve the right to change both without notice. We are not responsible for customer pricing errors. All photos and illustrations are representative and are to be used as a guide only. Floorplans and specifications may be varied by 6HOMES without notice, dimensions and measurements are an approximate. The inclusion of furniture, floor coverings, wallpaper, curtains, light fittings, lawns, fences, driveways, footpaths, patios and pergolas are intended merely as a guide and are not included in the price unless otherwise listed independently. All designs are the property of 6HOMES and must not be used, reproduced, copied or varied, wholly or in part without written permission from an authorised 6HOMES representative."

Additional costs for Rural Tailgate Inspection

For orders to be delivered to addresses that are subject to rural tailgate inspection, all the additional cost including inspection cost and cartage cost from wharf to AQIS Depot for tailgate inspection will be borne by purchaser.

Shipping cost Terms and Conditions

All modular home prices include door-to-door delivery service within Melbourne metropolitan area. Our price lists are generally valid for three months or date specified in the price list. Prices are subject to changes without notice. To ensure the most accurate and up-to-date pricing, please contact 6Homes for confirmation.

Total Price of Product (not including Additional Design & Variation Cost, Engineering Cost, and Permit Administration Cost)

\$

Holding Deposit (payable when making reservation, to be deducted from First Instalment)

\$

2,000 for each Product

First Instalment (balance of 30% of Total Price less the Holding Deposit, payable when placing the Order)

\$

Final Instalment (70% of Total Price payable, upon the departure of the Product from the manufacturer's factory)

\$

Additional Design & Variation Cost (only applicable to orders of non-standard 6HOMES Products, on top of Total Price of Product, this cost is upfront additional cost mutually agreed between Customer and 6HOMES, payable together with the First Instalment)

\$

Engineering Cost (if any engineering services are required, e.g. structure engineering or other engineering services, additional cost to apply, payable together with the Final Instalment)

\$

Planning Cost (if any planning services are required for site specific conditions, additional cost to apply, payable together with the Final Instalment)

\$

Storage Fee (container yard is necessary for storage especially when modulars are cleared from custom but should not be shipped to site due to logistic reasons and/or site conditions)

\$

Per day



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Part D – Delivery details

Is the Product to be delivered to the Collection Point or a customer Delivery Address?

☐ To be delivered to the below Collection Point. We will endeavour to provide you with 3 days' notice prior to the Product being ready to collect.

☐ To be delivered to the below customer Delivery Address. Please note this will incur an additional Delivery Fee.

Indicative Availability Date

-- / -- / 20 --

Collection Point

Street Address

Suburb

State

	Post code	
	Country	Australia

OR

Delivery Address (If different from Site Address)

Street Address

Suburb

State

	Post code	
	Country	Australia

Part E – Guarantor details*

Full name

Phone number

Email

Drivers Licence Number

Address

Street Address

Suburb

State

	Post code	
	Country	Australia

** Please note that a Guarantor is only required for those Customers who are not natural persons. The Guarantor must be an Australian resident director of the corporate Customer.*

Please sign this document on the following page. By signing this document you agree to be bound by our Terms and Conditions of Sale.



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Signing page

Executed as an agreement.

Dated:

Customer

[If Customer is an individual:]

Signed by the **Customer** in the presence of:

Signature of Witness

Name of Witness (Block Letters)

Address of Witness (Block Letters)

Occupation of Witness (Block Letters)

Signature of **Customer**

[If Customer is a company]

Executed by **[insert Customer name]** ACN
[insert] under section 127 of the Corporations
Act by its duly authorised officers:

Signature of Director

Signature of Director/Secretary

Name of Director
(Block Letters)

Name of Director/Secretary
(Block Letters)

Guarantor **[not required if the Customer is an individual]**

Signed by the **Guarantor** in the presence of:

Signature of Witness

Name of Witness (Block Letters)

Address of Witness (Block Letters)

Occupation of Witness (Block Letters)

Signature of **Guarantor**

6Homes Pty Ltd

[If 6Homes is executing in accordance with section 127]

Executed by 6Homes Pty Ltd ACN 636 121
205 under section 127 of the Corporations Act
by its duly authorised officers:

Signature of Director

Signature of Director/Secretary

Name of Director
(Block Letters)

Name of Director/Secretary
(Block Letters)

[If 6Homes is executing using an authorised representative]

Signed for and on behalf of **6Homes Pty Ltd**
ACN 636 121 205 by its authorised
representative:

Signature of Authorised Representative

Name of Authorised Representative
(Block Letters)

Terms and Conditions of Sale

1. DEFINITIONS

In these terms and conditions (**Terms**):

"Collection Date" means that date when the Product is intended to be ready for collection from the Collection Point as advised by us to you;

"Collection Point" means the address for collection of the Product, as set out in Part D of the Client Order Form or such other address as agreed between the parties in writing;

"Client Order Form" means the form set out at the start of this document;

"Defect" means a defect, flaw or imperfection in the Product (or any part of the Product) which prevents the Product from being used or which makes the use of the Product dangerous, but does not include anything which has been disclosed as a feature or limitation of the Product by us prior to the date of purchase, or any defect, flaw or imperfection that is trivial or insubstantial (and "Defective" has the corresponding meaning);

"Defect Liability Period" means the period in which a Defect will be remedied under our product warranty, as set out in Part C of Schedule A of these Terms;

"Delivery Address" means the address nominated by you for delivery of the Product, as set out in Part D of the Client Order Form or such other address as agreed between the parties in writing;

"Delivery Date" means the date when the Product is intended to be delivered to the Delivery Address;

"Delivery Fee" means the delivery fee payable by you for delivery of the Product to your Delivery Address, an estimate of which is set out in Part C of the Client Order Form;

"Final Instalment" means the amount set out in Part C of the Client Order Form as "Final Instalment", representing 70% of the Total Price;

"First Instalment" means the amount set out in Part C of the Client Order Form as "First Instalment", representing 30% of the Total Price less the Holding Deposit;

"Guarantor" means the guarantor specified in Part E of the Client Order Form;

"GST" has the meaning given to that term in the GST Law;

"GST Law" means *A New Tax System (Goods and Services Tax) Act 1999* (Cth);

"Holding Deposit" means the amount set out in Part C of the Client Order Form as "Holding Deposit";

"Indicative Availability Date" means the date specified in Part D of the Client Order Form as "Indicative Availability Date";

"Insolvency Event" means any circumstance where you are unable to pay your debts as they fall due or you are otherwise considered insolvent or bankrupt;

"Jurisdiction" means the State or Territory in Australia where the Collection Location or Delivery Address (as applicable) is located, unless otherwise agreed by us in writing;

"Modification" means any modification to the Product as requested by you and approved by us in writing, as set out in Part B of Schedule A;

"Order" means a completed Client Order Form duly executed by you and provided to us at our nominated location from time-to-time;

"Personal Information" has the meaning given to that term in the Privacy Act;

"PPSA" means the *Personal Property Securities Act 2009* (Cth);

"PPSR" means the Personal Property Securities Register established pursuant to the PPSA;

"Privacy Act" means *Privacy Act 1988* (Cth);

"Product" means the residential modular product(s), as set out in Part B of the Client Order Form and the Specifications;

"Site Address" means the address nominated by you for the installation of the Product, as set out in Part A of the Client Order Form;

"Specifications" means the specifications for our Products as set out in Part A of Schedule A and any agreed Modifications;

"Storage Fee" means the daily fee for storage charged by us to you at the daily rate set-out in Part C of the Client Order Form;

"Total Price" means the full price of the Product as set out in Part C of the Client Order Form, being the sum of the Holding Deposit, the First Instalment, the Final Instalment, Additional Design & Variation Cost, Engineering Cost and Planning Cost, but does not include any Storage Fee;

"us" or "we" means 6Homes Pty Ltd ACN 636 121 205 and each of our agents, servants and employees and any related bodies corporate as defined in the *Corporations Act 2001* (Cth) (if such related body corporate is named as the party making or accepting your Order);

"you" or "your" means any person that places the Order with us and its employees, contractors or officers; and

"Website" means the website operated by us in relation to the sale of the Products, if any.

2. ORDERS AND CANCELLATIONS

- (a) You agree to purchase, and we agree to sell, the Product in accordance with these Terms.
- (b) We have the sole discretion to accept or reject any Order.
- (c) If the Order is accepted by us in writing by countersigning this document, a contract of sale will arise and will comprise of the accepted Order and these Terms.
- (d) If you wish to cancel the Order after we have accepted the Order, you must submit a request to us in writing.
- (e) We have the sole and absolute discretion as to whether we accept or reject any cancellation request. If, in our sole discretion, we accept any cancellation request, we reserve the right to charge you a cancellation fee.

3. PRICE AND PAYMENT

- (a) We will issue you will a valid tax invoice for:
 - (i) the Holding Deposit upon making a reservation with us;
 - (ii) the First Instalment upon placing the Order with us;
 - (iii) the Final Instalment (plus any Storage Fee) 7 days before the Delivery Date or Collection Date, as applicable; and
 - (iv) any additional Storage Fees as and when determined by us.
- (b) You must pay all validly issued tax invoices within:
 - (i) in the case of the Holding Deposit, and the First Instalment, immediately upon receipt; and
 - (ii) in the case of the Final Instalment and Storage



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Fee, within 7 days of receipt, but in any event before the Delivery Date or Collection Date, as applicable.

- (c) We will be entitled to charge you interest at 5% per annum compounding daily if you fail to pay the Holding Deposit, First Instalment, Final Instalment, Additional Design & Variation Cost, Engineering Cost, Planning Cost and Storage Fee in accordance with clause 3(b) which will be calculated from the relevant due date for payment until all amounts are received by us in full.

4. INSTALLATION AND USE OF THE PRODUCT AND PRODUCT ACKNOWLEDGEMENTS

- (a) You agree that:
- (i) the provision of the Products by us under these Terms does not include any work or services involving, or in connection with, unpacking, assembling or installing the Products, or the connection of the Products to any utility services;
 - (ii) we make no representations on whether the Product is suitable for use by you or any third party in any particular location;
 - (iii) natural products forming part of the Products (including timbers) are natural products and may vary (in texture, colour and grain) from any examples or displays shown to you prior to entering into these Terms;
 - (iv) all photos and illustrations set out in these Terms (including in any schedule) are indicative and are to be used as a guide only;
 - (v) any dimensions and measurements referred to in any photo or illustration set out in these Terms (including in any schedule) are an approximation only and the actual dimensions may vary;
 - (vi) the inclusion of furniture, floor coverings, wall paper, curtains, light fittings, lawns, fences, driveways, footpaths, patios and pergolas referred to in any photo or illustration set out in these Terms (including in any schedule) are intended merely as a guide and are not included in the Product or price unless specifically listed in these Terms or the Client Order Form; and
 - (vii) we reserve the right to modify or vary any floorplans or specifications of the Product without notice to you provided that those modifications or variations do not materially change the nature of scale of the Product.

and to the maximum extent permitted by law, we will have no liability for, and you waive and release us from, any liability arising out of any of the matters referred to in this clause 4(a).

- (b) You are solely responsible to ensure the Products are installed, connected to utility services and used in accordance with all laws, regulations, by-laws, codes and standards. If you require any permit for the installation, connection or use of the Product, you are solely responsible to obtain those relevant permits.
- (c) We recommend you seek independent advice from licenced and qualified professionals before undertaking any works on the Product and before you install the Product.
- (d) To the extent permitted by law, we exclude all and any liability whatsoever for any loss or damage you or any third party may suffer as a result of a failure by you or any third party to comply with all laws, regulations, by-laws, codes and standards when using or installing the Product.

5. COLLECTION AND DELIVERY

- (a) At or before the time you place the Order, we will give you an Indicative Availability Date for collection or delivery of the Product the subject of your Order. The Indicative Availability Date is indicative only and you agree and acknowledge that we will not be responsible for any delivery delays or date and time changes of the delivery as it is out of our direct control and may be caused by third parties.

- (b) If you have elected to collect the Product from the Collection Point in Part D of the Client Order Form, we will use our best endeavours to notify you in writing at least 3 days prior to the Collection Date that the Product is available for collection. You must collect the Product, at your own expenses, on the Collection Date. Failure to collect the Product on the Collection Date will result in you being liable for the Storage Fee for each day you fail to collect the Product. If the Product has not been collected by you within 3 days of the Collection Date, we reserve our rights to deal with the Product as required to recover our costs (including selling or disposing of the Product) without prejudice to any other rights or remedy we may have.

- (c) If you have elected to have the Product delivered to the Delivery Address in Part D of the Client Order Form:

- (i) we will notify you in writing at least 3 days prior to the Delivery Date;
- (ii) we will organise for a third party carrier to deliver the Product to the Delivery Address for the Delivery Fee;
- (iii) you must ensure there is sufficient access to the Delivery Address on the Delivery Date and you must ensure there is sufficient space for delivery of the Product at the Delivery Address on the Delivery Date;
- (iv) at the sole discretion of the carrier, the Products may be unloaded to an alternative point at or near the Delivery Address;
- (v) if you fail to allow sufficient space for the Products at the Delivery Address on the Delivery Date such that the Products cannot be easily, safely and lawfully unloaded, we may return the Product to our premises and you will be liable for all expenses incurred by us and our agents including extra delivery fees and Storage Fees (**Failed Delivery**); and
- (vi) if the delivery of Product is subject to a Failed Delivery, you must, at your own cost, collect the Product from the address nominated by us within 7 days of the Failed Delivery or we may terminate this agreement and your Order and all amounts will become immediately payable by you.

- (d) We will make reasonable efforts to have the Product delivered to the Collection Point by the Collection Date or the Delivery Address by the Delivery Date, as applicable. However, time is not of the essence for the Delivery Date or Collection Date and we will not be liable for any failure to deliver or any delay in delivery for any reason.

- (e) If you fail to take or accept delivery of the Product, the Product will be deemed to have been delivered if we leave it at the Delivery Address. We exclude any liability for any theft, loss or damage caused to the Product in the event the Product is left at the Delivery Address in accordance with this clause 5(e).

- (f) All risk in and to the Product purchased by you will pass to you upon collection or delivery to you or to any agent or other carrier commissioned to take possession of the Product. Legal and equitable title in and to the Product will not pass to you until you have paid the Total Price, Delivery Fee and any Storage Fee (as applicable) to us in full.

6. GUARANTEE AND INDEMNITY

- (a) The Guarantor (if any) acknowledges entering into these Terms in consideration of, among other things, us agreeing to enter into these Terms and for other valuable consideration received from the Customer.

- (b) The Guarantor irrevocably and unconditionally:

- (i) guarantees to us the payment of all costs, charges and fees arising out of or in connection with these Terms; and
- (ii) undertakes that, whenever the Customer does not pay any cost, charge or fee in accordance with these Terms, that Guarantor will immediately, on demand from us, pay those amounts to us as if it was the Customer.



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(c) The Guarantor indemnifies us, and must keep us indemnified, from and against any loss or claims, including any third party claims, arising out of a breach of these Terms by the Customer or any person authorised to represent the Customer.

(d) You indemnify us, and must keep us indemnified, from and against any loss or claims, including any third party claims, arising out of a breach of these Terms by you or any person authorised to represent you.

7. PPSR REGISTRATION

(a) By submitting an Order to us, you acknowledge and agree that any agreement formed under these Terms constitutes a security agreement for the purposes of the PPSA and until full payment has been made, creates a security interest in all of your present and after-acquired goods, materials, equipment or parts forming a part of the Products (the "Goods") supplied by or on behalf of us.

(b) You agree that you will:

- (i) promptly sign any further documents and provide any further information that we may reasonably require to register a financing statement, financing change statement or any other required document on the PPSR;
- (ii) indemnify, and upon demand reimburse us for all expenses incurred in registering a financing statement, financing change statement or any other required document on the PPSR or releasing any Goods charged thereby; and
- (iii) not register, or permit to be registered, a financing change statement or a financing change statement in respect of a security interest without our prior written consent.

(c) You agree that this clause 7 will survive termination of this agreement or any agreement hereunder for the sale or provision of Products.

8. RETURNS AND DEFECTS

(a) We will not accept returns or refunds for 'change of mind'. If the Product, or any part of the Product, is found to be Defective, the remedies set out in clause 8(e) will apply.

(b) You agree to inspect the Product promptly following the collection or delivery, and prior to installation, of the Product.

(c) In the event that you become aware of any Defect in the Product, you must immediately notify us of the alleged Defect. The notification must be in writing and must include as much detail as possible regarding the alleged Defect.

(d) You must maintain the Product, or relevant part of the Product, that is alleged to be Defective in the state in which it was collected or delivered and allow us (or our nominated agent) access to the Product to inspect the Product.

(e) If upon inspection of the Product in accordance with clause 8(d) we agree that the Product, or relevant part of the Product, is Defective and it is within the relevant Defect Liability Period, we, acting in our sole discretion, may either:

- (i) refund the price of the Product or the price attributable to any part of the Product that you paid, as applicable;
- (ii) repair the Product or any part of the Product, as applicable; or
- (iii) replace the Product or any part of the Product, as applicable.

(f) You agree that, if there is a Defect which requires part or all of the Product to be re-manufactured, we will require a reasonable period to allow for manufacturing and transportation of the relevant item to Australia.

(g) To the extent permitted by law, we will only remedy any Defect which is notified to us during the Defect Liability Period for the specific Defect.

9. EXPRESS PRODUCT WARRANTY

(a) We warrant the Product:

(i) is of satisfactory and merchantable quality;

(ii) is new and free from defects in manufacture, materials and workmanship;

(iii) will be free of any encumbrances upon payment of the Final Instalment; and

(iv) complies with the Specifications.

(b) To the extent permitted by law, the product warranty provided under clause 9(a) will be voided where:

(i) the Product (or any part of the Product) has not been installed or maintained strictly in accordance with any manufacturer's instructions or in accordance with all laws, regulations, by-laws, codes and standards;

(ii) the Products have been subjected to alterations or defective third party repairs;

(iii) the Products have been used in a manner not intended by us or have otherwise been misused.

10. EXCLUSION OF LIABILITY

(a) Subject to clauses 9 and 10(b), except as provided or implied by law, we do not provide any warranty, guarantee or similar right in respect of the Product. To the fullest extent permitted by law, we exclude any warranty, guarantee or similar right provided or implied by law.

(b) If any warranty, guarantee or similar right provided or implied by law which applies to us in providing the Product cannot be excluded, we limit our liability to the remedies as set out in clause 8(e).

(c) Nothing in these Terms excludes, restricts or modifies any warranty, guarantee or similar right provided or implied by law which cannot be excluded, restricted or modified.

(d) Except as expressly provided in these Terms and to the extent permitted by law, we will not be liable to you, however arising and under any cause of action or theory of liability, for:

(i) any loss or damage to any person or property caused or contributed to by the Product; or

(ii) any special, indirect or consequential damages, loss of profit (whether direct or indirect) or loss of business opportunity.

(e) Except where legislation cannot be excluded or would make this clause 10 illegal, or where the inclusion of this clause 10 would otherwise make us liable to a penalty, you release us from any claim that is made against us for damages or otherwise in respect of any loss, damage, death or injury arising from negligence or otherwise caused directly or indirectly by or arising out of the use or condition of Product sold to you, except to the extent that such loss, damage, death or injury has been caused by us.

11. TERMINATION

(a) We may terminate the Order and these Terms immediately by written notice to the parties, without prejudice to any rights accrued under these Terms, if:

(i) you breach these Terms and the breach is not capable of remedy or you do not remedy the breach within 7 days of written notice by us; or

(ii) a force majeure event has subsisted for 90 days or more in accordance with clause 13.

(b) If the Order and these Terms are terminated in accordance with clause 11(a)(i), you will forfeit all amounts paid to us and all outstanding amounts become immediately due and payable, without prejudice to any other rights we may have.

(c) If this agreement is terminated in accordance with clause 11(a)(ii), we will refund to you all amounts paid to us by you.

12. INTELLECTUAL PROPERTY

(a) The purchase of the Product under these Terms does not confer on the Customer or the Guarantor any licence or assignment of any copyright, patent, design or trade mark, or any other intellectual property right (whether registered,



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registrable or not) that subsists in the Product.

- (b) All designs of the Products are exclusively our property and must not be used, reproduced, copied or varied, wholly or in part by you without our prior written consent.

13. FORCE MAJEURE

- (a) We are not liable for any failure to perform any of our obligations under these Terms as a result of any event beyond our reasonable control including, without limitation, where we are prevented or hindered from manufacturing, delivering or supplying the Product as a result of any strikes, lockouts or other labour difficulty, inability to obtain any necessary materials, products, equipment, facilities or services from usual suppliers on usual terms, epidemic, pandemic or quarantine, power or water shortage, accidents or breakdowns of plant, machinery, software, hardware or communication network. In such circumstances, we may suspend performance of any obligations under these Terms while the event continues. We will not incur any liability to you in respect of such suspension.
- (b) If any of the above events occur for more than 90 days, we may, without liability, terminate any affected Order and/or these Terms immediately by notice in writing to you in accordance with clause 11.

14. PRIVACY

- (a) Our Privacy Policy is available on our Website and is incorporated into these Terms by reference.
- (b) We may collect and use the Customer's and Guarantor's Personal Information for purposes including:
 - (i) to process and administer dealings with the Customer as a customer, including assessing the Customer's credit worthiness;
 - (ii) to process and administer dealings with the Guarantor as a guarantor, including assessing the Guarantor's credit worthiness;
 - (iii) to provide the Customer with the Product they have requested and assisting them with further relevant information including Product related information; and
 - (iv) to administer the transactions contemplated by the Order and these Terms.
- (c) We will use Personal Information collected by us in accordance with our Privacy Policy and the Privacy Act and will not sell, trade, give or pass on any Personal Information to any third party unless such a disclosure is:
 - (i) contemplated by, and directly related to, these Terms;
 - (ii) you have consented to such disclosure; or
 - (iii) the disclosure is required by law.
- (d) By agreeing to these terms, each of the Customer and the Guarantor acknowledge and agree:
 - (i) to us disclosing their Personal Information to any third party contractors or service providers engaged by us to assist us in operating our business or providing the Product to the Customer

in accordance with these Terms;

- (ii) that they have read and agree to our Privacy Policy; and
- (iii) that they consent to the overseas transfer of your Personal Information to entities located outside of Australia for the purposes of providing the Product in accordance with these Terms.

- (e) Each of the Customer and the Guarantor warrant that they will comply with the Privacy Act and will not knowingly do anything, or permit anything to be done, which may result in a breach of the Privacy Act.

15. GENERAL

- (a) Unless we otherwise agree in writing, these Terms will be the only terms which apply to the sale of Product to you. The parties agree that these Terms will prevail over any other document, the Order or other terms, including your terms and conditions of purchase (if any). If there is an inconsistency between these Terms and any other terms, these Terms will prevail.
- (b) Any clause of these Terms which is invalid in any jurisdiction, is invalid in that jurisdiction to that extent, without invalidating or affecting the remaining clauses of these Terms or the validity of that clause in any other jurisdiction.
- (c) Neither you nor the Guarantor may assign their rights under these Terms without our prior written consent.
- (d) These Terms bind each party and any executor, administrator, transferee, assignee, liquidator or trustee in bankruptcy appointed in respect of it.
- (e) These Terms are governed by and construed under the law in the Jurisdiction. Any legal action in relation to these Terms against any party or its property may be brought in any court of competent jurisdiction in the Jurisdiction. Each party irrevocably, generally and unconditionally submits to the non-exclusive jurisdiction of any court specified in this provision in relation to both itself and its property.
- (f) Notwithstanding any other clause in these Terms, to the extent that any supply made under or in connection with these Terms is a taxable supply (as defined by the GST Law), you must pay us, in addition to the consideration provided for under these Terms, for that supply (unless it expressly included GST) an amount (additional amount) equal to the amount of that consideration (or its GST exclusive market value) multiplied by the rate at which GST is imposed in respect of the supply. You must pay to us the additional amount at the same time as the consideration to which it is referable. You are responsible for paying any other duties, taxes or charges, including any stamp duty (if applicable), in relation to the Product.
- (g) Waiver by us of a breach of these Terms or of any right or power arising on a breach of these Terms must be in writing and signed by us. A right or power created or arising on a breach of these Terms is not waived by any failure to exercise or delay in exercising, or a partial exercise of, that or any other right or power.
- (h) The Order and these Terms may be executed in any number of counterparts, all of which taken together are deemed to constitute one and the same document.

Schedule A – Product Details

Part A – Product Specifications

Structure

- 6Homes modular container carcasses are purpose built.
- 10-year structural guarantee Engineered galvanised, seam-welded and anti-corrosive heavy gauge steel framing.
- Heavy gauge steel floor joists & bearers and corner posts.
- FC (Fibre Cement), European anti-corrosion timber or Steel Stud facades with weatherproof paint (container-like finish).
- BAL 40 Rating
- Note that our modular structural casings fully comply with house engineering design standards and are not shipping containers, neither have been used as transport containers.

Insulation

- R-3.0 Rockwool batts to ceilings.
- R-1.5 Rockwool to internal walls.
- R-2.5 Fibreglass to external walls.
- Fire rated gyprock plasterboard.
- The outer modular carcass walls, roof and floor joists are painted in long life weatherproof paint.

Windows / External Entrance Doors

- 5mm double glazed tempered glass to aluminium framed windows and glass sliding doors.
- All windows and doors are thermally broken.
- Keyed locks to all external doors (locks, barrels and latches are removed for transportation reasons and to be refitted onsite).

Internal Fit---Out

- 2.4mm/3.4mm FC flooring sheet glued and screw fixed to steel floor joists.
- 15mm floating timber (veneer on plywood) flooring, with PU underlay throughout (excluding wet areas).
- 12mm plaster lined walls throughout (excluding wet areas).
- Fibre cement sheet lined walls to bathrooms.
- 12mm plasterboard fixed to ceiling battens installed throughout including shadow line for architectural feature (excluding wet areas).
- European Beech 68mm x 12mm architraves and skirting throughout (excluding wet areas) and to jamb-sets for door openings where applicable (wrapped and to be installed onsite).
- Painted flush panel timber veneer internal doors.
- Architectural Lever Series internal door furniture.
- Aluminium framed glass sliding doors to robes (except walk-through robes), linen cupboards and laundry where applicable.
- Robes fit out with a bank of shelves, top shelf with hanging rails.
- Built-in overhead and side cupboards in nominated bedrooms as per plan.
- 3 coats of premium paint applied to internal walls.

Electrical - AS3000:2018

- Internal switchboard External light fittings (prewired, to be installed onsite).
- Bathroom exhaust fans Light fittings, GPO (General Power Outlets), phone, data and TV points supplied and installed.
- Electrical main supply lead-in underneath container for connection (to be connected onsite).
- Air-conditioning connection is prewired.
- Smoke alarms (photoelectric). 1 smoke alarm per bedroom and 1 in the main central area. These are positioned appropriately in flow areas.
- All smoke alarms are connected to the mains electricity supply with battery backup and are all interconnected.

Kitchen

- 6Homes square edged stone bench tops.
- 6Homes 2pac/laminate finish to kitchen cupboard fronts including metal cabinetry handles where applicable.
- Kitchen drawers with soft closing drawer runners.
- Kitchen sink
- Tiled kitchen splashback to applicable designs.
- Provision for dishwasher including cold water connection and electrical.
- 6Homes range Two-element electric cooktops are supplied and installed.
- 6Homes range under bench oven is supplied and installed.
- 6Homes range dishwasher is supplied and installed.
- 6Homes kitchen mixer.

Plumbing

- Sink, toilets, wastes, vanities, basins, taps and showers are supplied and fully installed.
- All floor wastes supplied and installed.
- Polyethylene pressure piping is fully connected under the container.

Wet Areas

- Waterproofing as per AS3740:2021
- 1.8m high toughened glass shower screen with pivot or sliding door as applicable.
- Rectified tiles to ceiling in shower recess and 1.2m to remainder in ensuite and bathrooms as applicable.
- Mirrored shaving cabinet with light in bathrooms (to be hard wired onsite).
- Glass mosaic feature wall or feature strip to main bath shower recess to applicable designs.
- Wall mounted 2-pac single bowl vanity installed as per plan and reconstituted quartz stone to, vitreous china (an enamel coating) basin with chrome pop-up waste.
- 3 Star WELS rated "Wall Faced" vitreous china toilet suit with soft closing eat & lid.
- Bathroom accessories include one towel rail per bathroom, one face mounted toilet roll holder per WC, wall mounted soap holders to shower recess and bath as applicable.
- Laundry cabinet with stainless steel underslung sink, reconstituted quartz stone benchtop (subject to plan).
- 6Homes basin mixers where applicable.
- 6Homes wall mixer to shower recess where applicable.
- 6Homes laundry mixer.
- 6Homes 1/4 turn washing machine cocks.
- 6Homes 1/4 turn cistern cocks to WC's.
- 6Homes shower rose on rail combo.

Upgrade Options

- Window furnishings
- Sun shading, security screens & flyscreens subject to design.
- Awnings
- Split system air conditioner (s) may be requested.
- You may inquire 6Homes for other upgrades intended.

Exclusions

- Items not specified in these standard inclusions are excluded.

Part B – Modifications

[insert any agreed modifications to the base product]

Part C – Defect Liability Period

If there is found to be a Defect in accordance with clause 8 of the Terms, the following Defect Liability Periods apply:

Defect	Defect Liability Period*
Steel Structure	10 years
Insulation	5 years
Fire seals	5 years
Waterproofing in wet areas	5 years
Window / Doors	5 years
All other items	1 year

* The Defect Liability Period commences from the collection of the Product from the Collection Point or delivery to the Delivery Address (as applicable).

Part D – Floor Plan

[insert]